

Council Meeting
January 13, 2021
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The Claremont City Council held a meeting on Wednesday, January 13, 2021, in the Council Chambers of City Hall and via Zoom.

The meeting was called to order by Mayor Lovett at 5:49 p.m. [late start due to technical difficulties].

Mayor Lovett read the following statement: *This meeting is being conducted in accordance with the provisions of the Governor's Executive Order no. 2020-04 and the emergency meeting provisions of RSA 91-A to permit participation of board members by electronic means. Under the conditions of the current COVID-19 pandemic and the protocols established by the Centers for Disease Control (CDC), it is not reasonably practical for a quorum of this board's members to attend this meeting in person.*

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Members of the Council present, including location and who was in the room:

Ward I Councilor Andrew O'Hearne – home, alone

At-Large Councilor Erica Sweetser – Council Chambers, Assistant Mayor Damren, Councilor Stone and public

Assistant Mayor Allen Damren – Council Chambers, Councilors Stone and Sweetser, and public

Mayor Charlene Lovett – home, alone

At-Large Councilor Debora Matteau – home, alone

At-Large Councilor Nicholas Koloski – office, alone

Ward II Councilor James Contois – home, alone

Ward III Councilor Jonathan Stone – Council Chambers, Assistant Mayor Damren, Councilor Sweetser and public

Also present:

Edward Morris, City Manager

NEW BUSINESS

Interview and Selection of Candidate to Fill Vacant At-Large Councilor Seat

Interview Process:

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Each applicant will be given two minutes for an opening statement, and two minutes for a closing statement. Each applicant will be asked to answer the following questions:

- A. How have you personally invested yourself in Claremont?
- B. What motivates you to serve as a City Councilor?
- C. What do you feel is one of the City's biggest challenges?
- D. What committees do you see yourself participating in as a Councilor, and why?

Each applicant will be given two minutes to answer each of the above questions. Councilors will not be given an opportunity to redirect.

After the interviews are completed, each member of the Council will cast a vote. If there is a clear winner during the first round, then no further voting is necessary. If there is not a clear winner, a second round of voting will be conducted.

The applicant with the most votes, will be sworn in by City Clerk Gwendolyn Melcher. The new Councilor will then take his/her seat at the virtual Council table and the meeting will resume.

Four applicants for the vacant At-Large Councilor seat left vacant after Councilor Abigail Kier resigned because she was moving to another state are: Dale Girard, Matthew Mooshian, Michael Sanborn and Heather Whitney.

There was a discussion about adding an additional question regarding Ms. Whitney's time commitments as she is a member of the Claremont School Board. Councilors did not agree to add that question, but hoped that since Ms. Whitney had heard it, she would include that information in her interview answers.

Councilor O'Hearne said he assumed someone would be named Sergeant-at-Arms as Councilor Kier held the position previously.

A motion was made by Councilor O'Hearne and seconded by Councilor Matteau to accept Councilor Abigail Kier's resignation that took effect on January 3, 2021.

Roll call vote:

O'Hearne - yes

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Lovett - yes

Motion carried 8-0.

There were four questions, so each candidate will take turns answering each question first. Mayor Lovett read the questions to each candidate.

Two Minute Opening Statement

Mr. Girard said that he is an owner/operator of Golden Cross Ambulance. As part of that, he establishes and maintains budgets. He is a volunteer on the Claremont Planning Board, worked on the City's Capital Improvements Plan, and is a member of the Airport Advisory Board. He is a property owner in Claremont.

Mr. Mooshian moved to Claremont in 2016 after being part of founding a non-profit program. He has committed himself to helping the community. He works with non-profit organizations. Claremont is where he has laid down his roots and he feels his experiences make him well qualified.

Mr. Sanborn said he has been in Claremont for 40 years. He worked for the City as a police officer and for Public Works. He has a deep understanding of what it takes to run the City. He has experience teaching. He teaches with VLACS. He has plenty of time to commit to the Council. He has volunteered 30 years as a foster parent.

Ms. Whitney said she is a product of a farm family. She moved to Claremont in 2005 from the Kearsarge school. She has her master's degree. The City has a tremendous amount of potential. There needs to be a focus on fundamentals (i.e. need for quality education). Another primary focus is to attract families to add value to the community and to add to our classrooms.

How have you personally invested yourself in Claremont?

Mr. Girard has been in business in Claremont for 22 years. He is a lifelong resident. He did a lot of volunteer work for Stevens High School sporting teams, providing medical coverage free of charge. He is a member of the Claremont Planning Board, Airport Advisory Board, and participated in the Capital Improvements Plan. To help out residents, his staff sells City of Claremont Transfer Station tickets. He is teaching an EMT class for free.

Mr. Mooshian moved to Claremont in 2016 after being part of the core team who founded Rural Outright. He collaborated with local businesses and entrepreneurs and partnered with local agencies to support folks that are often left in the margin. Rural Pride started in 2018 where a group of teens travelled across the state to participate in celebrations. He has invested in people through Pride celebrations and hosting open mic nights.

Mr. Sanborn has worked for the City, local schools, and the county. He teaches with VLACS online. He has done foster care for 30 years. He remains an education surrogate volunteer. His two daughters have gone through, and his grandchildren are now going through, Stevens High School.

Ms. Whitney said she has purchased a home and made home improvements. She is committed to staying in the community for a long time. The reason she is not more politically active is because she has two children and a demanding profession. Within a year and a half of being selected for the School Board, she was voted in a Vice Chair which is a testament to her abilities. She said the Council and School Board hold their meetings on opposite weeks.

What motivates you to serve as a City Councilor?

Mr. Mooshian said Claremont is where he's laid down roots. His experiences make him uniquely qualified to serve. People in Claremont care about what's going on here. He thinks Claremont has a lot of potential and he's motivated to serve in order to harness that potential. He wants to bring all of his experiences from the teens at Outright and from his professional experiences to the Council and to be a voice for those folks.

Mr. Sanborn said he's a doer and not so much a talker. Former Councilor Claire Lessard is his cousin and she recommended he apply to serve on the Council. He knows the nuts and bolts of how two departments of the City work. He knows the nuts and bolts of what goes on in education. He said he would like to assist with bringing in grants to the City. He would like to help prioritize; he is a data guy, science teacher.

Ms. Whitney said the impetus was that she came from a family of public servants. She wanted to live in a great community and to be involved in shaping the community. She is even tempered, leaves personal bias at the door, and listens to all positions. She can be swayed, but not often.

Mr. Girard said he is a lifelong resident of the City and has seen its ups and downs. It is on an upswing now and he would like to be a part of the solutions going forward. He would like to see the infrastructure updates continue. He has the time and would like to assist in moving the City forward.

What do you feel is one of the City's biggest challenges?

Mr. Sanborn said underemployed, unemployed, and substandard housing. He said he knows what's under the ground on Pleasant Street and its revitalization may be a challenge.

Ms. Whitney said Claremont has an image problem, and a perceived value problem which is inhibiting the ability to draw families into the community. The main arteries in Claremont could stand beautification and improvement. She talked about the broken window revitalization theory and that the first impression is usually the only impression.

Mr. Girard said the lack of housing and that the Peterson Project will help. Maintaining roads is an issue, however, he understands there is only so much money to go around. The lack of housing, employment, and good paying jobs are issues.

Mr. Mooshian said this is a vibrant community, with a great diversity of business. Some projects on the horizon, for example, Peterson Mill, and Pleasant Street Revitalization give us a lot to look forward to. He thinks COVID-19 has posed serious challenges. Restaurants are struggling to keep money coming in, and keeping employees safe.

What committees do you see yourself participating in as a Councilor, and why?

Ms. Whitney said the Claremont Planning Board. She admits she's a novice and would have a lot to learn. She would like to explore the committees before making a commitment.

Mr. Girard said he would like to continue on the Claremont Planning Board as he is coming to understand the process. He would also like to continue on the Airport Advisory Board as he would like to see it grow in order to bring people from outside into this area. If not able to serve on them, he would like to serve on the Policy Committee.

Mr. Mooshian said he is a member of the Claremont Planning Board which he enjoys. However, if selected as the next Councilor and he had to step down from the Planning Board, he thinks the Policy Committee would be a great fit for him, because of his background in policy work through his work with the YMCA, Youth & Government, and he is a member of the NH LGBTQ+ Legislative Coalition. He also works with the Save the Children Action Networks.

Mr. Sanborn said he has an MBA in personnel management, so anything to do with personnel he is very capable of doing; and he has a master's degree in environmental study, so anything to do with conservation or the environment he would be interested in. He would be happy to serve on any board or committee where he is needed.

Two Minute Closing Statement

Ms. Whitney said her desire is to see Claremont move in the direction to attract families. She wants to support the educational system by drawing the Council in the direction of the School Board. She would like to be a liaison between the Council and School Board in order to help support each other's goals. She would like to focus on the fundamentals that make a community run and function, primarily infrastructure.

Mr. Girard said he has been successful in business for 22 years, and he knows how to put together budgets and how to work within budgets. He has the ability to listen to residents and has the time to devote to the Council. He is a lifelong resident and believes he would be a great asset to the Council.

Mr. Mooshian thanked everyone for this opportunity. He reiterated that Claremont is a really great place, and is a really strong, vibrant community. He will continue to elevate the voices of others in the community. He will keep Claremont moving forward.

Mr. Sanborn said he has deep roots in the community. He has experience with grant funding and communicating with the public. He is fully invested in the community. He thanked all for listening.

A break was called from 6:39 p.m. to 6:47 p.m.

Mayor Lovett said she has a family issue and will hand over the Council meeting to Assistant Mayor Damren after the swearing in.

Councilors voted

Roll call vote:

O’Hearne - Girard

Sweetser - Mooshian

Damren - Mooshian

Matteau - Mooshian

Koloski - Girard

Contois - Girard

Stone - Girard

Lovett – Girard

Dale Girard 5, Matt Mooshian 3.

Swearing In of At-Large Councilor

City Clerk Gwendolyn Melcher swore in Dale Girard as the newest At-Large Councilor to fill the unexpired term of the seat vacated by Abigail Kier. The term will expire December 31, 2021.

At 6:54 p.m. Mayor Lovett left the Council meeting.

AGENDA CHANGES

None.

REPORT OF THE SECRETARY

A motion was made by Councilor O’Hearne and seconded by Councilor Stone to accept the minutes of the December 9, 2020, City Council meeting.

Roll call vote:

O’Hearne - yes

Girard - abstain

Sweetser - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Motion carried 7-0, 1 abstain.

MAYOR’S NOTES

None

CITY MANAGER'S REPORT

- **FEMA Funds** – Thanked Amanda Benoit for her work on COVID reimbursements including the \$313,638.00 through the GOFFER program. She is now working on FEMA reimbursements for the City and has submitted and received an initial sum of \$58,092.05. The City is continuing to track costs associated with COVID-19 and will continue applying to FEMA for qualifying expenses.
- **Dispatch Update** – Regarding forming a regional communications center, he and the Town Manager of Newport, Hunter Rieseberg, have decided that it may be best to each upgrade their own dispatch equipment. Discussions are ongoing to have redundancy and to be able to dispatch for each other, if the need arises.
- **139-147 Main Street** – 139 Main Street has been demolished and work is beginning to repair the foundation, rebuilding the exterior wall, and repairing the interior of 147 Main Street. As we move into spring, the lot at 139 Main Street will be graded and seeded.
- **COVID-19 Update** – The City is on par with the state of NH. NH has 52.3 cases per 100,000 people; Sullivan County has 51.3. NH's infection rate is 1.02 and Sullivan County's is 1.34.
- In order to decrease these numbers in Claremont, we must increase our efforts to control the spread of the virus. If people can stay at home as much as possible, social distance and wearing masks when in public, and maintain hand hygiene and sanitization efforts, the sooner we may be able to start the reduction in numbers.

We have made a few changes throughout City Departments in response to the increased numbers. We have moved some employees back to working remotely on some days to limit shared office space, we have implemented temperature checks and have stopped taking reservations for room rentals at the Claremont Community Center. We are also closely watching the numbers of people in the Community Center at any single time, and may move towards a time reservation system if the City's COVID numbers do not improve. In other departments, we have increased COVID safety measures and continue to work closely with the State of NH to ensure the safety of our employees while continuing to provide services to the residents and visitors of Claremont.

Vaccinations:

Issues with the computerized system the State is using to collect data on the employees wishing to be vaccinated, and getting a date scheduled.

The State is making changes to start vaccinating more higher risk people. First responders are being scheduled, or have received their first vaccination. He will share more details when he gets them.

Councilor Koloski expressed concern about residents having difficulty getting tested. Mr. Morris said that is being looked at. If someone has symptoms, they can go to ER and get tested. If they have been in contact with someone who has COVID, there are channels to go through. Keady Family Medical and Alice Peck Day are testing sites. The City is working with the state to see if Claremont can be a testing site.

Councilor Matteau urged citizens to wear masks and stay home as much as possible.

At 7:12 p.m. Councilor Sweetser said she was struggling in her mask tonight, so she would go home and then rejoin the meeting on Zoom. [Note: Councilor Sweetser did not rejoin the meeting.]

Councilor Contois said at the last Council meeting that Jim Feleen had asked about the City not being in compliance regarding parking on the Rail Trail. Mr. Morris said the City is working with the state DOT (Department of Transportation) on this.

Councilor Contois said on four occasions that he had gone to the Transfer Station and the recycling dumpsters were full, so he was directed to put the recyclables in the trash. He said he is not comfortable with that. Mr. Morris said he will work with Casella on that.

Proclamation for Stan Andrews Retirement

Assistant Mayor Damren read the proclamation for Stanley Andrews upon his retirement from the Claremont Police Department after 25 years of service to the City of Claremont.

Councilors thanked Captain Andrews for his service.

Police Chief Mark Chase congratulated Captain Andrews and wished him the best.

APPOINTMENT TO BOARDS AND COMMITTEES

Electric Aggregation Committee – City Council Representative

Assistant Mayor Damren said City Councilors are needed to fill seats on the Finance and Policy Committees.

Mr. Morris said Councilor Sweetser serves on the Energy Advisory Committee; she wanted to make the seat on the Electric Aggregation Committee available to other Councilors.

Assistant Mayor Damren said that with Councilor Matteau's resignation from the Finance Committee, that leaves only two members on a five-member board, so now they cannot hold meetings. He asked Mr. Morris to run the ad again.

There was a discussion about Councilors applying for open Council seats on boards and commissions. Councilor O'Hearne reminded everyone that appointments of Councilor seats on boards don't require applications.

Councilor O'Hearne volunteered to sit on the Policy Committee.

A motion was made by Councilor Matteau and seconded by Councilor Contois to appoint Councilor Andrew O'Hearne to the Policy Committee.

Roll call vote:

O'Hearne - yes

Girard - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Motion carried 7-0.

Councilor Girard volunteered to sit on the Finance Committee.

A motion was made by Councilor O'Hearne and seconded by Councilor Matteau to appoint Councilor Dale Girard to the Finance Committee.

Roll call vote:

O'Hearne - yes

Girard - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Motion carried 7-0.

Councilor O'Hearne volunteered to take over the Sergeant-at-Arms position.

A motion was made by Councilor Stone and seconded by Councilor Matteau to appoint Councilor Andrew O'Hearne as Sergeant-at-Arms.

Roll call vote:

O'Hearne - yes

Girard - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes
Motion carried 7-0.

CITIZEN'S FORUM

No one spoke.

OLD BUSINESS

Legislative Update

Assistant Mayor Damren read Mayor Lovett's update.

Legislative Update – compiled by Mayor Lovett for inclusion in the Council packet for the meeting on January 13, 2021.

1. Discussion with State Reps/Senator

I had hoped to schedule this discussion for our first meeting in January, but the agenda was already too full. So, it is my intent to allot some time on the January 27 agenda for a discussion with our state representatives and senator to convey priorities/concerns during the upcoming legislative session.

As a starting point, some priorities/areas of concern that we have discussed to date include affordable/quality housing, expansion of development incentives, potential revenue shortfalls, funding for infrastructure/capital improvement projects, broadband expansion and homelessness. There may be other topics that you may want to bring to the attention of our state delegates.

2. Letter to the Governor/Commissioner of Education

At the monthly mayoral roundtable discussions, one of the issues of concern is the potential of revenue loss in the state's upcoming biennium budget for FY22/23, most notably education funding. Currently, many cities are facing reductions in enrollment and application completions for free and reduced lunch. Such reductions equate to significant loss of funding for many school districts.

As agreed upon at our last Council meeting, the City Manager and I met with the School Board Chair and the Superintendent to discuss concerns that affect the community as a whole. One area discussed was the potential of shortfalls in education revenue. Fortunately, the Claremont School District reductions in both enrollment and completed free and reduce lunch applications are slight. The larger concern is the potential reduction in stabilization and/or adequacy grants, increases in employer contributions to the NH Retirement System and the digital divide.

The mayors have drafted a letter, with input from the school districts, conveying the cities' concerns of shortfalls in education funding. The letter is still being finalized, but once

completed will be sent to the Governor and Commissioner of Education. A courtesy copy will be sent to the Speaker of the House and Senate President.

Councilor O’Hearne said the state is behind the 8-ball because of the passing of the Speaker and the appointment of the new Speaker. By the end of this month, they don’t know where they will be regarding meetings.

NEW BUSINESS

Accept Donation of Cleats from Walmart

Parks and Recreation Director Mark Brislin thanked Walmart for its donation of cleats. This was initiated by Chris LeClair. This will help kids in the baseball and softball programs who need cleats. Parks and Recreation has a cleat program to take back used cleats for soccer, baseball, and football.

A motion was made by Councilor Matteau and seconded by Councilor Stone to accept with sincere appreciation a donation from Walmart of 33 pairs of youth baseball cleats valued at approximately \$99.00, for the Parks and Recreation Department.

Roll call vote:

O’Hearne - yes

Girard - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Motion carried 7-0.

Resolution 2021-20 City Hall Boiler Repair – Public Hearing

WHEREAS, City Hall, the Opera House, City Clerk’s office, Police Department and Claremont District Court are heated by two oil fired commercial boilers that are located in the basement of City Hall; and

WHEREAS, this past August during routine annual cleaning, it was noted that City Hall Boiler #2 would require being re-sectioned, thoroughly cleaned, and re-gasketed.

NOW THEREFORE BE IT RESOLVED to raise and appropriate the sum of up to \$10,500; to be taken from unanticipated revenue from COVID relief funds with no impact on the tax rate and;

BE IT FURTHER RESOLVED that the City Manager, or his designees, are hereby authorized to undertake all actions and execute all documents as may be required to implement this resolution. *(2/3 vote required)*

Mr. Morris gave some background information.

There were questions about the way the resolution was worded regarding the COVID relief funds, so it was requested to be reworded and brought back to the January 27th Council meeting.

CDBG Public Facilities Grant Application – Southwest Community Service’s Emergency Shelter

Informational document was on the website prior to the public hearings.

Nancy Merrill, Planning and Development Director, said the City of Claremont, every year, can apply for up to \$500,000 in public facilities grant funding. The funds requested from Southwestern Community Services and Claremont Learning Partnership will be under the \$500,000.

Assistant Mayor Damren read the following. The Claremont City Council will hold five consecutive Public Hearings on January 13, 2021 at 6:30 p.m. at the City Hall, 58 Opera House Square, Claremont, New Hampshire. Members of the public and other interested parties can listen to and participate in this hearing via Zoom. Due to the COVID-19 crisis and in accordance with Governor Sununu's Emergency Order #12 and Executive Order 2020-04 this hearing is to be conducted electronically. An informational document on these public hearings was available on the City’s website www.claremontnh.com

Community Development Block Grant funds are available to municipalities through the NH Community Development Finance Authority. Up to \$500,000 annually is available for economic development projects, up to \$500,000 for public facility, up to \$500,000 for housing projects, and up to \$500,000 for emergency activities. Up to \$25,000 is available per planning study grant. All projects must directly benefit a majority of low and moderate income persons. The public hearings are on the following: the first is for Southwest Community Service’s Emergency Shelter’s Proposed Improvements.

This is a proposed application to the NH Community Development Finance Authority for up to \$300,000 in 2020/2021 Community Development Block Grant Public Facility funds for improvements to Southwest Community Service’s Emergency Shelter, 45 Central Street, Claremont. Improvements include, but not limited to electrical, energy upgrades, improved security, kitchen upgrades, and exterior improvements.

This project addresses a City Housing and Community Development Goal: Encourage Services for low and moderate income persons.

CDFA has made a recent decision to adjust their calendar year to mirror HUD’s July-June fiscal year calendar which has caused what would have been the first round of 2021 HUD funds to now result in a third round of 2020 HUD funds, so this request is from the 2020/2021 CDBG funding.

CDBG Public Facilities Grant Application - The City proposes to submit an application for funding titled Community Development Block Grant (CDBG) Public Facilities Grant for up to

\$300,000 from its application authority for 2020/2021 to the NH Community Development Finance Authority for improvements to Southwest Community Service's Emergency Shelter in Claremont.

Keith Thibault, Southwestern Community Services, talked about the emergency and transitional housing at 45 Central Street which houses single women and families. It is full 98% of the time. The program receives state funding to pay for operation and staffing of the facilities. There is no dedicated income to upgrade the facilities. They need electrical, kitchen cabinets, flooring, bathroom updates, etc.

This project addresses a City Housing and Community Development Goal: Encourage Services for low and moderate income persons.

Assistant Mayor Damren opened the public hearing and asked for public comment. No one spoke. He closed the public hearing.

1) Motion to Approve Application for Grant – Public Hearing

A motion was made by Councilor Matteau and seconded by Councilor Koloski that the Council votes to approve the submittal of the Southwest Community Service's Emergency Shelter's Proposed Improvements CDBG Application and vote to authorize the City Manager to sign and submit the application, and upon approval of the CDBG application, authorize the City Manager to execute any documents which may be necessary to effectuate the CDBG contract and any amendments thereto.

Councilor Contois asked about plans for the men's shelter. Mr. Thibault said the men's shelter has been upgraded. They are not looking to put more homeless units online. They are working with the Historic District Commission to upgrade the exterior of the other three buildings.

Roll call vote:

O'Hearne - yes

Girard - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Motion carried 7-0.

2) Review & Motion to Adopt City's Residential Anti-Displacement and Relocation Assistance Plan – Public Hearing

Assistant Mayor Damren read from the script. Residential Antidisplacement and Relocation Assistance Plan for Southwest Community Service's Emergency Shelter's Proposed Improvements. The Residential Antidisplacement and Relocation Assistance Plan outlines measures to be undertaken if any residents are temporarily or permanently relocated. Temporary

relocation may be necessitated by this project. Tenants may be temporarily moved to another Southwest Community Services Property. Southwest Community Services will pay any relocations costs. The project will follow the Uniform Relocation Act.

Assistant Mayor Damren opened the public hearing and asked for public comment. No one spoke. He closed the public hearing.

A motion was made by Councilor O’Hearne and seconded by Councilor Matteau that the Council votes to adopt the Antidisplacement and Relocation Assistance Plan for the Southwest Community Service's Emergency Shelter's Proposed Improvements.

Roll call vote:

O’Hearne - yes

Girard - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Motion carried 7-0.

CDBG Public Facilities Grant Application – Claremont Learning Partnership

CDBG Public Facilities Grant Application - The City proposes to submit an application for funding titled Community Development Block Grant (CDBG) Public Facilities Grant for up to \$300,000 from its application authority for 2020 to the NH Community Development Finance Authority for the acquisition 169 Main Street, Claremont by the Claremont Learning Partnership.

Assistant Mayor Damren read from the script. Claremont Learning Partnership’s Proposed Acquisition of 169 Main Street. This is a proposed application to the NH Community Development Finance Authority for up to \$300,000 in 2020/2021 Community Development Block Grant Public Facility funds for the acquisition 169 Main Street, Claremont by the Claremont Learning Partnership. Claremont Learning Partnership provides services for increasing educational access, child care programs, and transitional housing support for teens aged 16-22.

This project addresses a City Housing and Community Development Goal: Encourage Services for low and moderate income persons.

CDFA has made a recent decision to adjust their calendar year to mirror HUD’s July-June fiscal year calendar which has caused what would have been the first round of 2021 HUD funds to now result in a third round of 2020 HUD funds, so this request is from the 2020/2021 CDBG funding.

Assistant Mayor Damren opened the public hearing and asked for public comment.

Cathy Pellerin, Claremont Learning Partnership, said they have been working on this project for the past two years. They've received their temporary certificate of occupancy last week and expect to have the permanent one next week.

Assistant Mayor Damren, again, asked for public comment.

Councilor Contois asked about housing unaccompanied youth. Ms. Pellerin said they will house 18-20 year olds now and when staffed with a program manager, they will be able to house 16-18 year olds. Councilor Contois asked about the budget. Ms. Pellerin said they will apply for a Department of Health & Human Services grant in March to support staffing for this space. If it is not received, they will fundraise.

Councilor Koloski asked about Claremont Learning Partnership affiliation. Ms. Pellerin said they are a private 501(c)3, not part of the School District. Councilor Koloski asked if they will come back to the Council for a PILOT (Payment in Lieu of Taxes). Ms. Pellerin said that is the plan going forward.

Assistant Mayor Damren closed the public hearing.

1) Motion to Approve Application for Grant – Public Hearing

A motion was made by Councilor Girard and seconded by Councilor Matteau that the Council votes to approve the submittal of the Claremont Learning Partnership's Proposed Acquisition of 169 Main Street CDBG Application and vote to authorize the City Manager to sign and submit the application, and upon approval of the CDBG application, authorize the City Manager to execute any documents which may be necessary to effectuate the CDBG contract and any amendments thereto.

Roll call vote:

O'Hearne - yes

Girard - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Motion carried 7-0.

2) Review & Motion to Adopt City's Residential Anti-Displacement and Relocation Assistance Plan – Public Hearing

Assistant Mayor Damren read from the script Residential Antidisplacement and Relocation Assistance Plan for Claremont Learning Partnership's Proposed Acquisition of 169 Main Street.

The Residential Antidisplacement and Relocation Assistance Plan outlines measures to be undertaken if any residents or businesses are temporarily or permanently relocated. No

relocation or displacement is anticipated for this project. The project will follow the Uniform Relocation Act.

Assistant Mayor Damren opened the public hearing and asked for public comment. No one spoke. He closed it.

A motion was made by Councilor Matteau and seconded by Councilor Contois that the Council votes to adopt the Antidisplacement and Relocation Assistance Plan for the Claremont Learning Partnership's Proposed Acquisition of 169 Main Street.

Roll call vote:

O'Hearne - yes

Girard - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Motion carried 7-0.

CDBG Emergency Grant Mid-Grant Hearing, 143-147 Main Street – Public Hearing

Assistant Mayor Damren read from the script Progress of the 147 Main Street Project.

This is an update on the progress of the 147 Main Street Community Development Block Grant Emergency Grant. Installation of the wall shoring of the shared wall between 139 and 143-147 Main Street is complete. Demolition of 139 has begun, the building is down, aside from some remnants of the foundation. Reconstruction of the foundation wall will commence shortly. A general contractor for the reconstruction of the shared wall, and the rehabilitation of the units at 143-147 Main Street has been selected, and that work is expected to begin shortly after the New Year. It is anticipated that the work will be completed by late spring 2021. The 7 residential units at 147 Main Street which will remain affordable to low and moderate income households for 20 years.

Assistant Mayor Damren opened the public hearing and asked for public comment.

Tom Krebs, Projects Manager, said construction of the foundation wall is complete. Regarding Pine Hill Construction, there is a small amount of masonry work left to do and then they will be done. They will regrade, and then loam and seed the area in the spring. LPH, Inc. has been selected to rehab the wall. It will take 3-4 months and will be done in late spring.

Assistant Mayor Damren opened the public hearing and asked for public comment.

Councilor Contois asked about inside renovations. Mr. Krebs said there are finishes, plumbing, mechanical work to be done on the shared wall. Then there will be reconstruction of the wall and exterior work. They will get new kitchen cabinets because they old ones were on the shared

wall. All the units are being rehabbed. It's part of the grant. The property owner will maintain those units as affordable units for 20 years.

Assistant Mayor Damren closed the public hearing.

Mr. Krebs said this was to inform the public of the status of this project. CDBG rules require a mid-grant update.

Donna Lane, grant writer, said she didn't hear it in the beginning, so she wanted to be sure it was said that there were informational documents available on the website prior to the public hearing.

Resolution 2021-21 Adoption of RSA 79-E, Community Revitalization Tax Relief, 131 Broad Street, Map 120-88 – Public Hearing (City Manager)

WHEREAS the City Council passed Resolution 2016-11 on July 22, 2015, adopting the provisions of RSA 79-E, Community Revitalization Tax Relief Incentive, as further amended by Resolution 2019-8 and as readopted by Resolution 2021-13; and

WHEREAS on January 4, 2021, the City received an application from Andre Lafreniere Sr., DBA 131 Broad St., LLC, seeking property tax relief under the provisions of RSA 79-E as incentive for substantial rehabilitation for property located at 131 Broad Street (the "Property"); and

WHEREAS the Property is located within the City's 79-E Incentive District; and

WHEREAS Andre Lafreniere Sr., DBA 131 Broad St., LLC plans to invest approximately \$56,363.00 to substantially rehabilitate the Property; and

WHEREAS the City Council has determined that the application has met the requirements of RSA 79-E:14 and has determined that the construction cost for the proposed ~~apartment~~ *commercial* building shall not result in the use of government grants and funds whereby such funds would total 50% or more of the project's construction cost; and

WHEREAS the City Council finds that the application satisfies all applicable provisions of RSA 79-E and is eligible pursuant to RSA 79-E:5, I for a Community Tax Relief Incentive for a period up to five (5) years, beginning with the completion of the substantial rehabilitation of the Property.

NOW THEREFORE BE IT RESOLVED that the City Council hereby determines the proposed project has a public benefit in accordance with RSA 79-E:7, I, II, II-a, and III; and

BE IT FURTHER RESOLVED the City Council herein approves the application for tax relief for a period of five (5) years per RSA 79-E:5, I, commencing upon the completion of the substantial rehabilitation of the Property as evidenced by the issuance of a Certificate of Occupancy; and

BE IT FURTHER RESOLVED that the granting of this Community Tax Relief Incentive is subject to the granting by Andre Lafreniere Sr., DBA 131 Broad St., LLC, of a covenant, acceptable to legal counsel, in accordance with RSA 79-E:8, ensuring that the property shall be maintained and used in a manner that furthers the public benefits for which the tax relief was granted and such other requirements as are set forth in Resolution 2021-13; and

BE IT FURTHER RESOLVED that if the covenant is terminated for any reason, the City shall assess all current and arrears taxes to the owner as though no tax relief was granted, with interest, in accordance with RSA Chapter 75; and

BE IT FURTHER RESOLVED that the City Manager or his designees are hereby authorized to execute all documents and undertake all actions as may be required to implement this resolution. (*Majority Vote Required*)

Nancy Merrill, Planning and Development Director, introduced the applicant, Andy Lafreniere, and she said this project meets the threshold.

Mr. Lafreniere said this will become the new home for Claremont Custom Framing. He will offer a small office space lease. He talked about the roof leak, attic insulation, brick repairs, and windows that need to be replaced. He said he is investigating putting solar on the roof, and some mechanicals need to be replaced.

Councilor Koloski asked, in general, how can the City follow through to confirm the amount spent. Ms. Merrill said the City can ask for receipts, especially if the amount is not clear. A covenant is recorded to make sure the public benefit is done and followed through on. The covenant is for twice the time of the exemption.

A motion was made by Councilor Contois and seconded by Councilor Matteau to adopt Resolution 2021-21 Adoption of RSA 79-E, Community Revitalization Tax Relief, 131 Broad Street, Map 120-88.

Councilor Contois read the resolution into the record.

Assistant Mayor Damren opened the public hearing. No one spoke. He closed it.

Councilor Koloski would like to strike the word “apartment.”

Ms. Merrill said it was an error. It should be “proposed commercial building.”

Councilor Contois and Councilor Matteau agreed the paragraph should read:
WHEREAS the City Council has determined that the application has met the requirements of RSA 79-E:14 and has determined that the construction cost for the proposed commercial building shall not result in the use of government grants and funds whereby such funds would total 50% or more of the project’s construction cost.

Roll call vote:

O’Hearne - yes

Girard - yes
Damren - yes
Matteau - yes
Koloski - yes
Contois - yes
Stone - yes
Motion carried 7-0.

Lease of City-Owned Property Claremont Airport (City Manager)

Councilor Girard recused himself.

Mr. Morris said the design and construction of the terminal building made space available for this lot. It is common to have land available for lease on the airport.

Fire Chief Bryan Burr said the design of the new terminal building created usable land which could be marketed. There are other parcels within the fenced in area (i.e. American Brush and Costa) that are being leased.

Ms. Merrill said the lease is for a 60' x70' parcel of land. There are other leases for individual hangars with 20-year leases, with two 10-year renewals. The City is looking to do the same thing on this one. Historically, leases have had rent for \$1, and then they've shown property taxes for the land which would go to the Airport Fund. FAA asked the City to put an amount in the rent column that is fair and reasonable. The amount of land tax will be the lease amount. This motion will allow the City Manager to continue with the negotiation.

There was a discussion about leasing this to a sitting Councilor without going for a competitive bid. However, the motion and lease agreement were written before Councilor Girard was appointed to the Council at this meeting.

Mr. Morris noted there are 9-10 lots out there that are available, if anyone else is interested in leasing them to build a hangar. Ms. Merrill said this is not a competitive bid; the FAA requires fair and reasonable rent.

Councilors asked for this to be run by legal. Mr. Morris will do that.

A motion was made by Councilor Matteau and seconded by Councilor Stone to authorize the City Manager or his designees to enter into a multi-year lease agreement with Dalelyn LLC for the lease of a certain parcel of land referred to as Hangar Lease Plan 1, Stantec, dated November 2020, at the Claremont Municipal Airport.

Roll call vote:
O'Hearne - yes
Girard - recuse
Damren - yes
Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Motion carried 6-0, 1 recuse.

Funds Transfer (Compensation) (City Manager)

Assistant Mayor Damren said the Finance Committee submitted its recommendation to the Council regarding this.

Mr. Morris said last month, the request was for \$62,136 to be transferred to start giving some raises based on the percentages behind on the certain percentile. It was discussed with the Finance Committee to give all Merit Plan employees a 2.5% raise, which is an average of what other communities are giving. This keeps us in line with what the union employees are going to receive. Both, the Finance Committee and the Personnel Advisory Board recommended giving a 2.5% raise to all Merit Plan employees. He said the difference between the number given to the Finance Committee and what is being presented is because the Finance Director re-ran the numbers and confirmed the amount was \$19,946.08. This leaves the remainder of the money for next year.

He recommends moving forward with this.

Councilor Matteau said she was concerned about implementing raises before the budget process. She said the Council needs to be concerned about what's happening on the school side. She thinks the \$19,946.08 is fair.

Councilor O'Hearne said at the last meeting he had asked for a list of current salaries for Merit Plan employees, but Council hadn't received it, yet.

At the 2/24/2021 Council meeting Councilor O'Hearne requested to have a word-for-word transcription of the two-and-a-half-minute video of a portion of the 1/13/2021 Council meeting that he had emailed to the Council Clerk on 2/23/2021.

- Mr. Morris said, "We can move on to Councilor questions."
- Assistant Mayor Damren said, "Councilor O'Hearne."
- Councilor O'Hearne said, "This question is for the City Manager. I remember that the last meeting, when we discussed this, uh, we were sending it to the, uh, Finance Committee. I had asked could I have more of a visual; could I see where the Merit employees were at, currently, uh, and why that request was not fulfilled and, uh, sent out."
- Mr. Morris said, "I did not send that out with the Finance Committee's recommendation, um, we can look at that, but I am hesitant that you know as it states in the Charter, the Council is not supposed to be looking at individuals and making decisions based on what individual people are making in the City, so part of the reason that I did not send that out."

- Councilor O’Hearne said, “So I just wanna make sure this is clear, so you felt not even responding back to me to even tell me that, uh, prior to this meeting was justified as I made that request.”
- Mr. Morris said, “No.”
- Assistant Mayor Damren said, “I think at this point the best way to explain that probably is you were owed a response. You might not have liked the response, but you were owed a response and it might have been a short response, but that is certainly something that we can look at as we go further with the compensation plan and the compensation study.”
- Councilor O’Hearne said, “Well, I will disagree that I think that, uh, that any other employee’s wages is public information. Even as a citizen, I can request that if I was you know a citizen. So, me being a Councilor should not make any difference my requesting that. We have received it before, we have received it under, uh, different City Managers. This wasn’t the first time I requested it. So, I think that decision was wrong and I think that it needs to be corrected and before I, I will vote on this, I would want to see that.”
- Assistant Mayor Damren said, “Maybe a way out of the situation we find ourselves in Mr. Morris, if you would just clarify that with our, uh, City Attorney please, I’d appreciate it.”
- Mr. Morris said, “Oh, we can send it out. Decisions are not supposed to be made on.”
- Assistant Mayor Damren said, “um hum, yeah, just run it by. Councilor Contois.”
- Councilor Contois said, “so...the...I have my own question, but Councilor O’Hearne, uh, made a point, um, the...after the last Council meeting, I learned more from the Eagle Times newspaper ad about what was going on than I learned at the Council meeting.”

End of transcription.

Councilor Contois said he doesn’t have enough data to make a decision.

A motion was made by Councilor Stone and seconded by Councilor Matteau to table.

Roll call vote:

O’Hearne - yes

Girard - yes

Damren - no

Matteau - yes

Koloski - abstain

Contois - yes

Stone - yes

Motion carried 5-1, 1 abstain.

Councilor Stone would like to have this scheduled to be taken off the table at the next scheduled meeting. Also, he would like to direct the City Manager to provide the Council with the requested information for that meeting.

Councilor O’Hearne said he didn’t need the names, but would like to have a list of the positions and what they are currently being paid. Mr. Morris said because a lot of the positions have only

one employee, the employee would be known. He will send the list to the Council, including names.

COMMITTEE REPORTS

Councilor Stone said the Policy Committee will meet on January 21st and will discuss a plan of action.

Assistant Mayor Damren said with the appointment of Councilor Girard, the Finance Committee will schedule its next meeting.

FUTURE AGENDA ITEMS AND DIRECTIVES

Councilor Matteau said one of the main Council goals is blighted property clean up. She would like an update.

Councilor Koloski's requests:

- Update on No Overnight Parking signs in the North Street parking lot
- Update on citizen concern re: use of public property on North Street for private dumpster and parking spaces
- Trash update at an apartment building
- He asked how Councilors are supposed to receive updates regarding questions/concerns that are sent to the City Manager
- In the past he has asked the City Manager to work with the School Superintendent to not schedule overlapping meetings
- He asked when the Council will give the City Manager its budget goals
 - Mr. Morris said that can be discussed at the next meeting, at the same time Council Goals are discussed
 - Mr. Morris believes No Overnight Parking signs have been installed at the North Street Parking lot
 - Mr. Morris will check on the North Street updates

Councilor O'Hearne said after the last storm, sidewalks on Main Street were plowed and left with glare ice without treatment; he hoped to have that addressed the next time it snowed.

Assistant Mayor Damren said regarding School Board meetings in conflict with City Council meetings, that the meeting tonight is a budget meeting, not a regular School Board meeting. Mr. Morris will follow up with Superintendent Tempesta.

There was a brief discussion about the January 27th Council meeting starting at 6:00 p.m. in order to accommodate a Non-Public Session for Personnel.

Councilor Koloski asked how to make sure that Councilors receive important notifications as sometimes the email notices go to Junk Mail, etc.

CONSULTATION WITH LEGAL COUNSEL

None.

ADJOURNMENT

At 9:32 p.m., a motion was made by Councilor Matteau and seconded by Councilor O'Hearne to adjourn.

Roll call vote:

O'Hearne - yes

Girard - yes

Damren - yes

Matteau - yes

Koloski - yes

Contois - yes

Stone - yes

Motion carried 7-0.

Respectfully Submitted,

Dorée M. Russell
Clerk to the Council